

		such as arbitrability or scope of the agreement, only where the parties expressly provide for this in the arbitration agreement. <i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514, U.S. 938 944; <i>Parker v. Twentieth Century-Fox Film Corp.</i> (1981) 118 Cal. App. 3d 895, 901. Here, federal law applies as the FAA governs the arbitration agreement based on the terms of that agreement. The FAA applies to arbitration clauses in contracts involving interstate commerce. <i>Rodriguez v. American Technologies, Inc.</i> (2006) 136 Cal. App. 4th 1110, 1117. The burden of proof is on the party claiming the contract involves interstate commerce and that the FAA preempts state law, but where there is no evidence the language of the agreement determines applicable law. <i>Woolls v. Superior Court</i> (2005) 127 Cal. App. 4th 197, 211-14; <i>Valencia v. Smith</i> (2010) 185 Cal. App. 4th 153, 179. Here, the arbitration provision expressly provides for the FAA to govern both interpretation and enforcement of the agreement. [<i>Id.</i>] In short, the arbitration provision in effect clearly states that question of interpretation of the arbitration agreement – such as whether Plaintiff Nguyen’s claims are covered by the agreement when he did not order the ride – are to be decided by the arbitrator. The provision also clearly delegates determination of unconscionability or other defenses to enforcement to the arbitrator. In short, the Court finds that the delegation of arbitrability issues to the arbitrator is clear and unequivocal. As a consequent, under the FAA, it must grant the motion to compel arbitration. <i>Henry Schein, Inc. v. Archer and White Sales, Inc.</i> (2019) 586 U.S. 63, 68 [139 S.Ct. 524, 529, 202 L.Ed.2d 480] Accordingly, the Court grants the motion to compel arbitration for the arbitrator to decide Guardarrama’s claims against Uber and to decide whether Nguyen’s claims against Uber are arbitrable under his arbitration agreement and to proceed as appropriate upon that decision.
11.	2023-1358961 Arora vs. Anaheim Police	Demurrer Motion for Leave to Amend Case Management Conference Defendant City of Garden Grove, erroneously sued as the Garden Grove Police (“Garden Grove”), demurs generally and specially to The First Amended Complaint (“FAC”) filed by

Plaintiff Divyakumar Arora (“Plaintiff”). Plaintiff seeks an order granting leave to amend his amended complaint.

DEMURRER

Garden Grove did not show Garden Grove complied with its Code of Civil Procedure meet and confer requirement. “Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) Garden Grove showed Garden Grove sent a letter by mail to Plaintiff and that Plaintiff did not respond to the letter. (McEwen Decl., ¶¶ 2-3.) Garden Grove did not explain why no attempt was made to meet and confer at least by telephone with Plaintiff. Accordingly, the hearing on the demurrer is continued to September 4, 2024 [or later date subject to the Court’s availability] at 10:00 AM in Department N18.

Prior to the continued hearing date, the parties shall meet and confer as set forth in Code of Civil Procedure section 430.41. Should the parties determine after meeting and conferring that withdrawal of the demurrer, or amendment of the complaint is appropriate, the parties shall file no later than August 23, 2024, a stipulation permitting a withdrawal of the demurrer or permitting leave to file an amended complaint, and accompanying proposed order. Otherwise, defendant shall file and serve a declaration in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3)(A), no later than August 23, 2024.

MOTION FOR LEAVE TO AMEND

Defendants City of Garden Grove and City of Anaheim are entitled to notice of Plaintiff’s motion. (Code Civ. Proc., § 1014 [“A defendant appears in an action when the defendant...demurs...After appearance, a defendant or the defendant's attorney is entitled to notice of all subsequent proceedings of which notice is required to be given.”].) “Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (Cal. Rules of Ct., Rule 3.1300(c).)

Plaintiff did not file a proof of service showing the moving papers were served on either defendant. City of Garden Grove and Anaheim contend they did not receive a copy of the moving papers.

In addition, Plaintiff did not state the legal authority in support of his requested relief in either the notice of motion or memorandum. (Code Civ. Proc., § 1010 [“Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based.”]; Cal. Rules of Ct., Rule 3.1110(a) [“A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.”].) A basic tenet of motion practice is that the notice of motion must state the grounds for the order being sought and courts generally may consider only the grounds stated in the notice of motion. (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) The purpose of the notice requirements is to cause the moving party to sufficiently define the issues for the information and attention of the adverse party and the court. (*Id.*) Plaintiff’s notice of motion and memorandum is devoid of any legal authority.

When a motion does not comply with Code of Civil Procedure section 1010 and California Rules of Court, Rule 3.1110(a), “the trial court could reasonably have rejected the entire motion as defective and noncompliant with California rules and statutes.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1127; *see*, 366-386 *Geary St., L.P. v. Superior Court* (1990) 219 Cal.App.3d 1186, 1200 [Relief properly denied when statutory authority only cited in the caption for petition but not raised in the notice or supporting papers by reference or discussion of the statute.].) The trial court may also overlook these defects and review the documents to determine the specific basis upon which relief is sought, as permitted by *Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 807-808. (*Luri*, 107 Cal.App.4th at 1127; *Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 808 [“Even though the notice of motion fails to state a particular ground for the motion, where the notice states, as here, that the motion is being made upon the notice of motion and accompanying papers and the record, and these papers and the record support that particular ground, the matter is properly before the court and the defect in the notice of motion should be disregarded.”].) Defective notice may also be sufficient “if the omitted issue, or ground for relief, was raised without objection before the trial court.” (*Kinda*, 247 Cal.App.4th at 1277.) Garden Grove and Anaheim opposed the motion and objected to not being provided any notice of the motion.

	In addition, the memorandum “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Ct., Rule 3.1113(b).) The memorandum did not comply with Rule 3.1113(b). Defendants did not oppose the motion on this procedural ground. Plaintiff did not comply with CRC Rule 3.1324, which provides as follows: (a) Contents of motion A motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (b) Supporting declaration A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. Accordingly, the hearing on this motion is continued to <u>September 4, 2024</u> at 10:00 AM in Department N18. No later than August 7, 2024, Plaintiff shall serve and file an amended motion and supporting declaration that addresses the above deficiencies. Plaintiff shall file a proof of service showing the amended papers were properly served in accordance with the Code of Civil Procedure on all parties who have appeared. The Court reminds the parties that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater
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		consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, Rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) The fact that Plaintiff is a self-represented litigant does not relieve him of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are “held to the same standards as attorneys.” (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543.) Garden Grove shall give notice.
12.	2023-1366300 CANNELL CAPITAL, LLC vs. BAKER TILLY US, LLP	Continued to 09/11/2024.